Course 4

Internet regulations

Technical Standards

- **Internet Engineering Task Force (IETF)** - development and evolution of the network protocols
- **World Wide Web Consortium (W3C)** - open standards organization:
  - complements the work of the IETF
  - facilitates the development of document formats (HTML, CSS, XML, SVG, etc.) and application program interfaces (APIs)
- **Internet Society (ISOC)** - non-profit organization, provides a legal and institutional framework to support the work of the **Internet Engineering Task Force** and its sister bodies, the **Internet Engineering Steering Group** and the **Internet Architecture Board**

Domain Names

- **Internet Corporation for Assigned Names & Numbers (ICANN)** - non-profit corporation founded in 1998:
  - coordinates the allocation of domain names and Internet protocol (IP) addresses
  - approves the introduction of new top-level domains (TLDs)
  - develops policies for resolving domain name disputes
- **The Internet Assigned Numbers Authority (IANA)** – performs global coordination of the DNS Root, IP addressing, and other Internet protocol resources

Open Internet rules in the EU

- Open Internet Regulation (Regulation (EU) 2015/2120):
  - Every EU country must have access to the open Internet
  - All Internet traffic will be treated equally

  - the way that Internet Service Providers (ISPs) manage the data or traffic
  - ISPs are prohibited from blocking or slowing down of internet traffic, except where necessary

Lawsuits that changed the Internet

- **1997: Reno v. American Civil Liberties Union**
  - was the first to apply First Amendment free speech protections to the Internet
  - The Communications Decency Act had attempted to criminalize transmissions of obscene or indecent messages

Obscenity is not protected speech

Lawsuits that changed the Internet

- **1997: Zeran v. American Online**
  - protect Internet intermediaries.
  - Zeran had sued AOL for negligence following harassment organized through their service.
  - The Fourth Circuit ruled that under the CDA, intermediaries such as **ISPs, social media forums, web hosting companies and the like, cannot be held responsible for the tortious acts of their users**.

"About a week after the Oklahoma City bombings in April 1995, posts appeared on an AOL messageboard offering items for sale that were printed with multiple exclamation point witticisms such as, "Visit Oklahoma … It's a BLAST!!!" and "McVeigh for President 1996." The posts directed users to contact Seattle resident Kenneth M. Zeran and listed the guy's home phone number. The posts were a bizarre prank — Zeran claimed not to know anything about the message board or the items ostensibly for sale — but the phenomenon went viral after an Oklahoma City radio DJ encouraged his listeners to express their outrage in Zeran's direction. For a while, Zeran received hundreds of angry phone calls per day and eventually required protective assistance from the FBI at his home. He sued the radio station's owners for amplifying the prank and AOL for publishing the prank in the first place."

Lawsuits that changed the Internet

- **1996: ProCD v. Zeidenberg**
  - Terms of service and licensing agreements NOT read=> AGREED
  - establishing the validity of shrinkwrap and clickwrap licenses.

“Grad. student Matthew Zeidenberg purchased a CD-ROM telephone directory, SelectPhone. He loaded it onto his hard drive and clicked through a series of warnings stating that the directory was licensed by ProCD and that users were not allowed to share the CD-ROM’s contents in any commercial pursuit. Zeidenberg ignored the warnings and posted the directory to a website, offering users access to the directory for a fee slightly lower than what ProCD charged. ”

Lawsuits that changed the Internet

- **2001: A&M Record vs Napster**
  - The logic behind the Napster brought down a major piracy platform and has been used to shut down similar P2P programs, such as torrent sites, since.
  - **NO immunity for P2P platforms** Napster, the then-omnipresent peer-to-peer file sharing service could be held liable for contributory and vicarious infringement of copyrights. The logic behind the Napster brought down a major piracy platform and has been used to shut down similar P2P programs, such as torrent sites, since.

Lawsuits that changed the Internet

- **2000: LICRA vs Yahoo! Inc France**
  - Law forbids any public exposure of insignia, symbol, etc. of organizations that have been convicted for crimes against humanity
  - Yahoo!Auction – allows users from France to view them
  - In France – the Court decides: Yahoo should block access to all bidding that involves such objects
  - Yahoo – lawsuit in USA: French law is infringing the First Amendment
    - France has the right to its own laws
- ***"impact on restricted information"***
- Impact: legislation in a country is influencing the way in which Internet companies are conducting businesses

Lawsuits that changed the Internet

- **Antitrust litigation with Microsoft** (a.o.)

Internet Ethics [Irina Raicu - Markkula Center for Applied Ethics - https://www.scu.edu/ethics/]

- *"It basically refers to the analysis of the role that the internet plays in what philosophers call the development of the good life - the kind of life that we want for ourselves, for society over all, the kinds of people we want to be"*
- Main issues:
  - Privacy
  - Big Data
  - Net Neutrality
  - Access to Internet

InternetEthics.Privacy

- Next course

Individual work

- Give an example of a non-ethical case for each category

Main issues:

- ~~Privacy~~
- Big Data
- Net Neutrality
- Access to Internet

InternetEthics.BigData - Collection and analysis of Big Data



Who?



What data?



Who is left out?



Decision making based on collected data?

InternetEthics.NetNeutrality - controllers of the pipelines of the internet cannot control the content



Favored content?



Encourage consumption of some content?

InternetEthics.Access



People who do not have access to internet



Limited access: broadband



Restricted access

Internet Ethics

- Free speech vs. content control
- Censorship
- Child protection

Recommended

- ***Movie***: Social Dilemma

- ***Talks***:
  - http://www.ted.com/talks/glenn_greenwald_why_privacy_matters
  - http://www.ted.com/talks/todd_humphreys_how_to_fool_a_gps
  - http://www.ted.com/talks/christopher_m00t_poole_the_case_for_anonymity_online